

Plaintiff meets its burden as the moving party to establish entitlement to judgment as a matter of law, shifting the burden to defendant to establish a triable issue of material fact. As defendant filed no opposition to the present motion, defendant fails to meet its burden and the evidence presented is unopposed on the record. (Code Civ. Proc. § 437c (c); *Aguilar, supra*, 25 Cal.4th at 850.)

Based on the foregoing, plaintiff's motion for summary judgment is granted.

3. M-CV-0094075 Jin, Yurong v. Li, Yuejia

Motion to Stay the Execution of Judgment

Appearance of the parties is required on **May 12, 2026 at 8:30 a.m. in Department 42.**

4. M-CV-0095721 Marie E Gallagher 2003 Trust v. Gallagher, Richard

Motion to Set Aside Default and Default Judgment

Defendant Richard Gallagher moves for a stay in execution of judgment and asks that default and default judgment be set aside. The court deemed this motion to be a motion to set aside pursuant to Code of Civil Procedure section 473(b) by its order scheduling this hearing. (Ruling on ex parte application, Apr. 29, 2026.) Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside default due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made “within a reasonable time, in no case exceeding six months” from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant’s motion is timely brought within one month of entry of default and default judgment. As to grounds for relief, defendant declares he was never served with the summons and complaint. A proof of service filed March 3, 2026 shows defendant Gallagher was served by substitute service pursuant to Code of Civil Procedure section 415.20(b) by leaving a copy of the summons and complaint with Gregory Sansenbach on March 1, 2026 and by mailing the same on March 2, 2026. Defendant Gallagher argues that this service was not effective due to the disability of Sansenbach. While the court has insufficient information to determine the effectiveness of this service, it does appear to the court the service did not result in actual notice to defendant. Defendant’s failure to timely respond to the complaint constitutes sufficient “mistake, inadvertence, surprise, or excusable neglect” within the meaning of Code of Civil Procedure section 473(b). Moreover, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court’s file the notice of errata was ever served on defendants.

Based on the foregoing, the motion is granted. Default of defendant Gallagher entered March 30, 2026 and default judgment entered April 3, 2026 are set aside. The writ of

possession issued April 8, 2026 is vacated. Defendant shall file and serve his answer to the complaint by May 18, 2026.

Order to Show Cause

In reviewing defendant Gallagher's motion above, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court's file the notice of errata was ever served on defendants. The court, on its own motion, schedules an order to show cause hearing on **May 18, 2026 at 3:30 p.m. in Department 40** regarding setting aside the default and default judgment as to defendant Gregory Sansenbach. Plaintiff shall appear and show cause, if any, why default and default judgment as to defendant Gregory Sansenbach should not be set aside.

The clerk is directed to provide notice of this order and the order to show cause hearing on all parties.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendants demur to the FAC in this unlawful detainer action.

The court on its own motion takes judicial notice of the complaint filed March 12, 2026 and the FAC filed April 2, 2026. Plaintiff's request for judicial notice is denied because plaintiff does not specify what documents in the case files of which the court should take judicial notice. Moreover, plaintiff is reminded that each case is determined on its own merits.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants argue the FAC fails to state a cause of action for unlawful detainer because the 3-day notice to pay or quit provided as Exhibit 2 to the FAC shows service by posting but fails in the same document to show mailing. Code of Civil Procedure section 1162 permits personal service, service by substitution, or if no person may be found at the